

2021 Y L R 556

[Lahore]

Before Masud Abid Naqvi and Jawad Hassan, JJ

SAJID HUSSAIN and others---Appellants

Versus

GOVERNMENT OF PUNJAB and others---Respondents

I.C.A. No. 59588 of 2020, decided on 18th November, 2020.

Law Reforms Ordinance (XII of 1972)---

----S. 3---Constitution of Pakistan, Art. 199---Intra court appeal---Constitutional petition---Maintainability---Contract employee---Scope---Appellants, contract employees, challenged the validity of order passed by Single Judge of High Court whereby their writ petition was dismissed--- Validity--- Appellants were recruited purely on contract basis; their initial recruitment was not only found to be bogus and illegal but was also found in bare violation of Contract Policy; they had not challenged the order whereby their initial recruitment was declared to be illegal and their contract was not extended after its expiry---Contract employee could not maintain a Constitutional petition---Intra court appeal was dismissed accordingly.

Ministry of IPC through Secretary and others v. Arbab Altaf Hussain and others 2014 SCMR 1573 and Federation of Pakistan through Secretary Law, Justice and Parliamentary Affairs v. Muhammad Azam Chattha 2013 SCMR 120 rel.

Raja Faisal Hayat Janjua for Appellants.

ORDER

Through this Intra Court Appeal, the appellant has challenged the validity of the order dated 20.10.2020 passed by the learned Single Judge-in-chamber whereby writ petition filed by the appellants was dismissed.

2. We have taken into consideration the arguments advanced by learned counsel for appellants and perused the record.

3. Although appellants were recruited purely on contract basis initially for a period of three years vide Order No. 2391- 92/ DLO/ KHB/ Esst dated 25.11.2010 but after the implementation of government policy regarding regularization of contract employees, process of recruitment of the contract employees was initiated and record of the individual employees was scrutinized by the department. During the scrutiny of the record, certain facts, as is mentioned in report and parawise comments filed by respondents Nos.1, 2 and 5, revealed that initial recruitment of the appellants was not only bogus and illegal but bare violation of Contract Policy 2004, hence, Secretary (L&DD) Department/competent authority declared initial recruitment of the appellants as illegal and the same order was not even challenged by the appellants in the present writ petition. On query learned counsel for the appellants failed to mention any document to prove that initial recruitment of the

appellants being contract employees was legal and by filing writ petition only sought regularization on the basis of certain notifications, orders and judgments. Even otherwise from the bare perusal of initial appointment letter, it appears that the appellants were appointed on contract basis and their contract was not extended after its expiry. It is an established principle of law that a contract employee cannot maintain a writ petition. Reliance is placed on case reported as "Ministry of IPC through Secretary and others v. Arbab Altaf Hussain and others" (2014 SCMR 1573). Relevant portion of the judgment is reproduced herein below:-

"Secondly, the employment(s) of the said respondents admittedly was contractual in nature and their services were terminated after due notice as per their contractual terms and conditions of service. And even on this account the writ petitions were incompetent and had to fail. It may be added here, that their termination(s) was made by the competent authority in the Board; for example in the case of Arbab Altaf Hussain, as stated earlier, notice was served upon him and ultimately his service was terminated by Director HR & A, who as per the Board's non-statutory rules, was the competent (authority) to do so. Besides to their extent the rule of exercise of de facto jurisdiction was attracted even if the supersession of the Board was assumed to be bad in law. So the writ petitions filed by all other respondents, as mentioned earlier, were liable to be dismissed on these scores. "

Reference may also be made to the case titled as "Federation of Pakistan through Secretary Law, Justice and Parliamentary Affairs v. Muhammad Azam Chattha" (2013 SCMR 120). Relevant portion of the judgment is reproduced herein below:-

"In addition to it, it is a cardinal principle of law that a contract employee instead of pressing for his reinstatement to serve for the leftover period can at best claim damages to the extent of unexpired period of his service. 15. In Halsbury's Laws of England (3rd Ed.) Vol. 11, p.244 Para 414, it is stated that the measure of damages for wrongful dismissal, is the loss thereby incurred, and that would, subject to the duty of the plaintiff to mitigate, normally be the wages due and payable for the agreed period of service. In the case of Federation of Pakistan v. Ali Ahmed Qureshi (2001 SCMR 1733) it has been held that in view of the doctrine of master and servant, the contract of service cannot be specifically enforced, however, in the event of arbitrary dismissal or unwarranted termination of employment, an employee is entitled to sue for damages equal to wages, allowances and other benefits, which would have been otherwise due and payable under the contract of employment. In the case of Pakistan Red Crescent Society and another v. Syed Nazir Gillani (PLD 2005 SC 806) it has been held that an employee of a corporation, in the absence of violation of law or any statutory rule, cannot press into service the Constitutional or civil jurisdiction for seeking relief of reinstatement in service and can only claim damages against his wrongful dismissal or termination. While holding so, reference has been made to the cases of Mrs. M.N. Arshad v. Mrs. Naeema Khan (PLD 1990 SC 612), Messrs Malik and Haq v. Muhammad Shamsul Islam Chowdhury (PLD

1961 SC 531), Zainul Abidin v. Multan Central Cooperative Bank Limited (PLD 1966 SC 445), Chairman, East Pakistan Industrial Development Corporation v. Rustom Ali (PLD 1966 SC 848), Abdul Salam Mehta v. Chairman, WAPDA (1970 SCMR 40), Lt.-Col. Shujauddin Ahmad v. Oil and Gas Development Corporation (1971 SCMR 566), R.T.A. Janjua v. National Shipping Corporation (PLD 1974 SC 146), Principal, Cadet College, Kohat v. Muhammad Shoab Qureshi (PLD 1984 SC 1791), Anwar Hussain v. Agricultural Development Bank of Pakistan (PLD 1984 SC 194), Syed Akbar Ali Bokhari v. State Bank of Pakistan (PLD 1977 Lah. 234), Muhammad Yusuf Shah v. Pakistan International Airlines Corporation (PLD 1981 SC 224) and Evacuee Trust Property Board v. Muhammad Nawaz (1983 SCMR 1275). The same principle has been reiterated in the case of Brig. (R.) Sakhi Marjan v. Managing Director PEPCO (2009 SCMR 708). Reference may also be made to the case of S. S. Shetty v. Bharat Nidhi, Ltd. (AIR 1958 SC 12) wherein the Indian Supreme Court on the same issue has held as under:--

"The position as it obtains in the ordinary law of master and servant is quite clear. The master who wrongfully dismisses his servant is bound to pay him such damages as will compensate him for the wrong that he has sustained. "They are to be assessed by reference to the amount earned in the service wrongfully terminated and the time likely to elapse before the servant obtains another post for which he is fitted. If the contract expressly provides that it is terminable upon, e.g., a month's notice, the damages will ordinarily be a month's wages. ... No compensation can be claimed in respect of the injury done to the servant's feeling by the circumstances of his dismissal, nor in respect of extra difficulty of finding work resulting from those circumstances. A servant who has been wrongfully dismissed must use diligence to seek another employment, and the fact that he has been offered a suitable post may be taken into account in assessing the damages." [Chitty on Contracts, 21st Ed., Vol. (2), p.559 para. 1040].

If the contract of employment is for a specific term, the servant would in that event be entitled to damages the amount of which would be measured prima facie and subject to the rule of mitigation in the salary of which the master had deprived him. [Vide Collier v. Sunday Referee Publishing Co., Ltd. (1940) 4 All E.R. 237]. The servant would then be entitled to the whole of the salary, benefits, etc., which he would have earned had he continued in the employ of the master for the full term of the contract, subject of course to mitigation of damages by way of seeking alternative employment. Such damages would be recoverable by the servant for his wrongful dismissal by the master only on the basis of the master having committed a breach of the contract of employment."

4. In view of the foregoing discussion, we are of the considered opinion that the learned Single Judge has exhaustively dealt with the matter and decided the writ petition. The appellants have miserably failed to substantiate their case by giving valid grounds for setting aside the impugned order. Consequently, finding no merit in this appeal, the same is dismissed in limine.

SA/S-69/L Appeal dismissed.